Not entitled to the game on the trust estate where it can be let. — It was upon this principle that Lord Eldon once directed an inquiry, whether the liberty of *sporting* over the trust estate could be let for the benefit of the *cestuis que trust*, and, if not, he thought the game should belong to the heir; the trustee might appoint a gamekeeper, if necessary, for the preservation of the game, but not to keep up a mere establishment of pleasure (*d*).

2. **Nor to a right of presentation.** — So, if an *advowson* be devised to trustees, and the next presentation cannot be made productive to the trust estate, the right of presentation does not belong to the trustee, but must be exercised by him for the benefit of the heir-at-law, or of the *cestuis que trust*, according to circumstances. Thus, where an advowson was devised to trustees upon trust during the life of A., to apply the rents and profits in the purchase of an estate to be settled to certain uses upon the death of A., it was decided that the right of presentation (should any vacancy occur) during A.'s life, would, as undisposed of, belong to the heir-
[*276] at-law (*e*); and, in a later case, * where there was a devise to trustees during the life of A. to apply the rents and profits in *payment of debts*, it was held that the right of next presentation during the life of A. was a profit, and ought to be sold for the benefit of the creditors (*a*). If a testator devise an advowson to trustees for *sale*, the proceeds to be divided amongst certain persons, and a presentation falls, though the heir is absolutely disinherited, the trustees have not the nomination, but it belongs to the *cestuis*

(*d*) Webb *v.* Earl of Shaftesbury, 7 Ves. 480, see 488; and see Hutchinson *v.* Morritt, 3 Y. & C. 547.

(*e*) Sherrard *v.* Harborough, Amb. 165; and see Martin *v.* Martin, 12 Sim. 579; Gubbins *v.* Creed, 2 Sch. & Lef. 218; *Re* Shrewsbury School, 1 M. & Cr. 647.

(*a*) Cooke *v.* Cholmondeley, 3 Drew. 1.

post as to trustee purchasing. The trustee is liable for the losses, and can receive none of the profits if he uses the trust fund in trade or speculation, so that his temptation to risk trust funds is reduced to a minimum; Penman *v.* Slocum, 41 N. Y. 53; Durling *v.* Hammar, 5 C. E. Green, 220; Brown *v.* Rickets, 4 Johns. Ch. 303; and he must render a true account of all gains; Van Epps *v.* Van Epps, 9 Paige, 237; Richardson *v.* Spencer, 18 B. Mon. 450; the same rule holds true as between parties; Jones *v.* Dexter, 130 Mass. 380.